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Comment

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INDIGENOUS VALUES INITIATIVE
Publisher of The Doctrine of Discovery Project

A Comment on *Making All the World America: Native Information and the Doctrine of Discovery*

Timothy Bowers Vasko, *Making All the World America: Native Information and the Doctrine of Discovery* (University of Pennsylvania Press, April 2026), Pp. 320. Hardcover ISBN 9781512829297, \$65.00.

This comment accompanies Steven T. Newcomb's review of the same book, published by The Doctrine of Discovery Project at <https://doctrineofdiscovery.org/blog/review/9781512829297/>.

Vasko's publisher, University of Pennsylvania Press, contends that *Making All the World America* "offers a provocative new account...of the Doctrine of Discovery". Given the volume of writing on the topic, that's a provocative claim. [See footnoted¹ results of literature searches.]

Here's the publisher's statement (emphasis added to portions I critique):

A provocative new account of the ideological framework undergirding early modern imperial expansion: the Doctrine of Discovery.

Making All the World America offers a new account of the ideological framework undergirding early modern imperial expansion: the Doctrine of Discovery, which held that the first arrival of a European power among the lands and peoples of the Western

¹ WorldCat shows 136 books published between 1979 and 2026 with "doctrine of discovery" in the title, up to and including *Making All the World America: Native Information and the Doctrine of Discovery*.

Google Ngram shows usage of the phrase "doctrine of discovery" in books published between 1800 and 2020. The graph shows a flat line from 1800 to 1830, where a sudden sharp peak occurs: the year before John Marshall penned *Cherokee Nation v. Georgia*. A much smaller peak occurs in 1866: the year the Supreme Court decided *In Re Kansas Indians* and *The New York Indians*. A slightly smaller peak occurs in 1902, corresponding to Supreme Court decisions in *Cherokee Nation v. Hitchcock* and *Lone Wolf v. Hitchcock*. A big increase starts with a blip in 1980, two years after Congress passed the *Indian Child Welfare Act*, and rapidly climbs thereafter. A peak higher than 1830 occurs in 2007, marking the final stages in drafting the United Nations DRIP. A slight drop occurs in 2011 and thereafter the graph climbs to its highest point in 2020, where the timeline ends. When Google adds additional materials to the corpus, we will see whether that final peak is an artifact of 'wokeness', which peaked around 2022.

WestLaw shows 108 court decisions from 1813 to 2025 using the phrase "doctrine of discovery". Some of these are not relevant here because they involve the concept of "discovery" in litigation: disclosure of information between litigants. Limiting the search to cases that involve "Indian or native or indigenous" drops the total to 43. Neither of these searches captures results in cases like *Tee-Hit-Ton v. United States* or even the originary case *Johnson v. McIntosh* (!) where the court uses the word "discovery" without the word "doctrine" ("discovery gave an exclusive right to extinguish the Indian title"). Westlaw also shows 1,077 law review articles using the phrase "doctrine of discovery" from 1972 to 2026. Limiting the results to articles that involve "Indian or native or indigenous" drops the total to 1,052.

Hemisphere granted the right to govern the regions that they claimed to have “discovered.”

While scholars have maintained that the doctrine operated through the suppression of Indigenous peoples, Timothy Bowers Vasko contends that, on the contrary, the **doctrine’s ideological work actually depended on the recognition of Indigenous rights and sovereignty**. Between 1492 and 1690, the Spanish and English architects of the doctrine **sought to justify European-Christian empire through the incorporation of Indigenous peoples into colonial frameworks as religious, political, property-owning subjects**. Examining the works of Peter Martyr, Thomas More, Bartolomé de Las Casas, Richard Hakluyt, and John Locke, among others, Vasko shows how **these theorists leveraged and referenced knowledge of Indigenous societies and religious traditions in the Americas as a way of legitimizing imperial claims to the Americas**. The doctrine’s **reliance on this production of Native information enabled the emergence of a new class of Indigenous intellectuals** such as Garcilaso de la Vega and Don Fernando de Alva Ixtlilxochitl, **who provided essential ethnographic material and exercised considerable influence on Western thought—especially the political theory of John Locke**—in surprising and overlooked ways.

As a retired legal studies professor (UMass Amherst, 1970–2002) and occasionally still-active lawyer in what I call federal anti-Indian law, I have lost patience with the outpouring of “provocative” theses that turn out to be rehashes of information and arguments made many times over the years (see WorldCat, Ngram, Westlaw). I have even less patience—amounting to zero—with the positioning of ‘pro-Native’ arguments within—rather than against—federal anti-Indian law. Much of what passes as scholarship is a meandering inside the maze of federal anti-Indian law, bumping around in the hall of mirrors.

In short, I have developed a sense for what is worth reading and what is not, based on the initial framing of an argument. For example, any argument that aims at “including” Native peoples inside the U.S. Constitution is already a non-starter. For one thing, the Constitution clearly does not “include” Native peoples, despite the contorted conversion of “regulate commerce with” into “exercise plenary power over”. For a second thing, “inclusion” was and is the essential colonial goal, manifested most horrifically in the child prisons known as “boarding schools”. We can thank Henry Pratt for at least being honest: “Kill the Indian and save the man”.

What I look for before reading anything nowadays is evidence that something really useful is present; something that reads the historical record closely and carefully and proceeds from close reading to sharp analysis. Too often legal materials are read as if they are “stories”. In fact, as the term “doctrine” indicates, legal materials need to be read like math equations. Every word and punctuation mark has significance. For example, when John Marshall writes in *Worcester v. Georgia*:

The Cherokee Nation . . . is a distinct community occupying its own territory . . . in which the laws of Georgia can have no force, and which the citizens of Georgia have no right to enter but with the assent of the Cherokees themselves, or in conformity with treaties and with the acts of Congress.

Almost all commentators, searching for a silver lining in the cloud of the Marshall trilogy, celebrate the apparent pro-Cherokee language that blocks Georgia from invading and ignore or don't really see Marshall's tagline, stated almost as an afterthought, that leaves the door wide open for the United States to invade Cherokee lands at the will of Congress.

The storybook reading of *Worcester* sees the happy face and misses the back door left open. It's a case of "the large print giveth, and the small print taketh away."

Worcester's rhetoric demonstrates the important point about reading cases. It is not enough to read cases like a story, even though there is a story in every case. As S. F. C. Milsom explains, one needs to take a mathematics or scientific approach, reading slowly, "thinking each sentence through in relation to the last and then again in relation to the next." Read in this way, Marshall's "or . . . and" function like Boolean operators determining the logic of his opinion, which is actually a statement of U.S. "plenary power" over "Indians".

So, Vasko is probably a very nice guy, and I don't have anything bad to say about him; but let me show you how it is that I will not be reading Vasko's book. Here are key excerpts from his publisher's statement:

- **"the doctrine's ideological work actually depended on the recognition of Indigenous rights and sovereignty."**
 - This statement is false. What else to say? *Non-recognition* of Indigenous rights and sovereignty is the core of the historical record from the 1493 bull *Inter Caetera* through the foundation case *Johnson v. McIntosh*.
 - The 1493 bull *Inter Caetera*, issued by Pope Alexander the Sixth, grants Ferdinand and Isabella, sponsors of "our beloved son, Christopher Columbus," ownership of all land Columbus might discover, "so far as it was not then possessed by any Christian prince."
 - Justice Joseph Story, a member of the Supreme Court throughout the Marshall trilogy, describes this papal authority in his *Commentaries on the Constitution of the United States*: "The title of the Indians was not treated as a right of propriety and dominion; but as a mere right of occupancy. As infidels, heathen, and savages, . . . [they] were not allowed to possess the prerogatives belonging to absolute, sovereign and independent nations."
 - Story concludes with the extraordinary statement that Native "territory . . . was, in respect to Christians, deemed, as if it were inhabited only by brute animals."
- **"architects of the doctrine sought to justify European-Christian empire through the incorporation of Indigenous peoples into colonial frameworks as religious, political, property-owning subjects."**
 - What? The empire 'sought to justify' itself by 'incorporating' original peoples as 'colonial subjects'? That's what empire is: 'incorporation' of prior peoples as 'subjects'! — 'Empire' sought to 'justify' itself by . . . colonizing!
- **"theorists leveraged and referenced knowledge of Indigenous societies and religious traditions in the Americas as a way of legitimizing imperial claims to the Americas."**

- What? ... empire theorists ‘leveraged’ original peoples’ knowledge and practices to ‘legitimize’ empire? That means they *appropriated* original peoples’ knowledge and practices to further the growth of empire!
- **“production of Native information enabled the emergence of a new class of Indigenous intellectuals... who provided essential ethnographic material and exercised considerable influence on Western thought”**
 - These lines demonstrate one of the trickiest tricks of apologizers: They use ‘positive’ sounding words like ‘Indigenous intellectuals’, ‘essential ethnographic material’, ‘exercised considerable influence’, and yes, ‘recognition’ to ‘elevate’ the status of original peoples... (here not all of them, only their ‘new’ intellectuals; whatever was wrong with the old intellectuals??).
 - A ‘woke’ rhetoric weaves fancy new colors into the emperor’s old clothes. This, of course, leaves the emperor still naked if you dare to look. Only the children dared in the original story.
- **“especially the political theory of John Locke”**
 - Locke is a favorite Christian European among commentators on “Indians” for his seeming appreciation of Indigenous peoples as living in “a state of nature” without domination (“without a common superior”).
 - The first warning comes from Locke’s personal and financial involvement in imperialist ambitions in the Americas (Secretary of the Lord Proprietors of Carolina, secretary and treasurer for the English Council for Trade and Foreign Plantations, and secretary to the Board of Trade and Foreign Plantations, which administered all English colonies in the New World).
 - The second warning is Locke’s view that people in “a state of nature” let land go to “waste”, which justifies colonial “development” of that land.
 - The third warning is that Locke’s postulate of a so-called “natural” way of life has the effect of ignoring / overriding the actual ways of life among Indigenous peoples, including their actual governing structures and their actual property systems as independent nations.
 - Ultimately, Locke’s statement that “in the beginning all the world was America” is a summation of his view of the necessary progress of “civilization”, to the detriment of the “wild Indian”.

I think these notes are sufficient to show why I will not be diving into this “provocative new account”.

In contrast, I see what Steve Newcomb and I do as look at the emperor’s old clothes, pick them apart, see the nakedness they try to cover. We’re exhuming, not embalming the domination system.

Peter d’Errico
September 2026